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ELECTRONICALLY
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Superior Court of California, County of San Francisco
05/05/2025
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BY: SANDRA SCHIRO
Deputy Clerk

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF SAN FRANCISCO

GREGORIO GARCIA, an individual,

Plaintiff,

vs.

GENERAL MOTORS LLC, a Delaware Limited Liability Company; and DOES 1 through 10, inclusive,

Defendants.

CASE NO.: CGC-24-614473

ASSIGNED TO:
Honorable Rochelle C. East
Department 206

GENERAL MOTORS LLC'S NOTICE OF MOTION AND MOTION FOR SUMMARY JUDGMENT OR, ALTERNATIVELY, FOR SUMMARY ADJUDICATION; MEMORANDUM OF POINTS AND AUTHORITIES

[Filed Concurrently with Separate Statement of Undisputed Facts; Declaration of Cameron Major; Declaration of Bryan Jensen; Documentary Evidence in Support of Motion of General Motors LLC for Summary Judgment or, alternatively, for Summary Adjudication; and [Proposed] Order]

Date: July 29, 2025
Time: 9:00 AM
Dept.: 301

Filing Date: May 8, 2024
Trial Date: September 15, 2025

TO ALL PARTIES AND THEIR ATTORNEYS OF RECORD:

PLEASE TAKE NOTICE that on July 29, 2025, at 9:00 a.m., in Department 301 of the above-captioned court at the Civic Center Courthouse, 400 McAllister Street, San Francisco, CA 94102, General Motors LLC ("GM") will, and hereby does, move for summary judgment on all three causes of action in Plaintiff's Complaint. GM is entitled to a judgment in its favor on Counts I-III, because, as a matter of law, Plaintiff cannot pursue Song-Beverly claims against GM about a vehicle Plaintiff bought used and for which GM did not provide warranty coverage apart from the warranty it issued when the vehicle was delivered to its original owner(s).

Alternatively, this Court should grant GM summary adjudication on all the Song-Beverly claims in this case.

GM bases its motion on this Notice, the accompanying Memorandum of Points and Authorities, the Separate Statement of Undisputed Facts, the Declaration of Cameron Major, the Declaration of Bryan Jensen, the pleadings, records, and files in this matter, and such other oral or documentary evidence as may be presented at the hearing of this motion or otherwise.

Date: May 2, 2025

ERSKINE LAW, APC

CAMERON MAJOR, ESQ.
AUSTIN ABERNATHY, ESQ.
Attorneys for Defendant
GENERAL MOTORS LLC

MEMORANDUM OF POINTS AND AUTHORITIES

I. INTRODUCTION

GM is entitled to summary judgment, or in the alternative, summary adjudication, on Counts I-III in this Song-Beverly matter. Plaintiff did not buy the vehicle at issue new; Plaintiff bought it used with 56,665 miles. Plaintiff did not receive from GM any new or additional warranty coverage with this used vehicle purchase; Plaintiff received only the balance of coverage remaining under the warranty that GM issued in connection with the original delivery of the vehicle– more than 56,000 miles before Plaintiff bought the vehicle used. On these undisputed facts, Plaintiff's Song-Beverly claims (Counts I-III) fail as a matter of law under *Rodriguez v. FCA US LLC* (2024) 17 Cal. 5th 189 and *Nunez v. FCA US LLC* (2021) 61 Cal.App.5th 385.

II. UNDISPUTED FACTS

A. Plaintiff Did Not Buy a "New Motor Vehicle."

Plaintiff Gregorio Garcia ("Plaintiff") bought a model year 2019 GMC Sierra, VIN: 1GTU9BEDXKZ361894 ("Subject Vehicle" or "Sierra") on August 25, 2023. (Complaint ¶ 8; Separate Statement of Undisputed Facts ("UMF") ¶ 1; Declaration of Cameron Major ("Major Decl."), Exhibit A (Retail Installment Sale Contract).) Plaintiff did not buy the Sierra new; Plaintiff bought it used, with 56,665 miles on the odometer, from Price Ford of Turlock as seen below:

RETAIL INSTALLMENT SALE CONTRACT – SIMPLE FINANCE CHARGE (WITH ARBITRATION PROVISION)

Buyer Name and Address (Including County and Zip Code)	Co-Buyer Name and Address (Including County and Zip Code)	Seller-Creditor (Name and Address)
GREGORIO GARCIA 428 MONTAGUE CT MODESTO. CA 95351 STANISLAUS Cell: 209-241-0721 Email: garciagreg2186@att.net	Cell: Email:	PRICE FORD OF TURLOCK 5200 N GOLDEN STATE BLVD. TURLOCK, CA 95382

You, the Buyer (and Co-Buyer, if any), may buy the vehicle below for cash or on credit. By signing this contract, you choose to buy the vehicle on credit under the agreements on the front and back of this contract. You agree to pay the Seller - Creditor (sometimes "we" or "us" in this contract) the Amount Financed and Finance Charge in U.S. funds according to the payment schedule below. We will figure your finance charge on a daily basis. The Truth-In-Lending Disclosures below are part of this contract.

New/Used	Year	Make and Model	Odometer	Vehicle Identification Number	Primary Use For Which Purchased
USED	2019	GMC SIERRA 1500	56665	1GTU9BEDXKZ361894	Personal, family, or household unless otherwise indicated below ☐ business or commercial

(UMF ¶ 2; Major Decl. Ex. A (marking Plaintiff's Sierra as "USED").) GM was not a party to the transaction between Plaintiff and Price Ford of Turlock. (UMF ¶¶ 2-3; Major Decl. Ex. A (not listing GM as a "Buyer," "Co-Buyer" or "Dealer/Creditor"); Declaration of Bryan Jensen ("Jensen Decl."), ¶ 5.)

B. The Warranty

Plaintiff was not the Sierra's original owner. (UMF ¶ 4; Major Decl. Ex. A.) Gold Star Buick GMC delivered the Sierra to its original owner(s) on July 19, 2019, with 21 miles on its odometer.

Delivery Information

Delivery Service Agent: 257781
GOLD STAR BUICK GMC
1980 N DAVIS ROAD
SALINAS CA 93907-2533 8314448444

. Delivery Date: 07/19/2019
Delivery Type: 010---INDIVIDUAL
Delivery Odometer: 21

(UMF ¶ 8; Jensen Decl. Exhibit B (GM's "View Vehicle Delivery Information" report).)

In connection with that delivery to the Sierra's original owner(s), GM issued a New Vehicle Limited Warranty (the "Warranty") providing bumper-to-bumper coverage for the earlier of 36 months or 36,000 miles and powertrain coverage for the earlier of 60 months or 60,000 miles. (UMF ¶ 9; Jensen Decl. Exhibit C (2019 GMC Limited Warranty and Owner Assistance Information); *id.*, Exhibit D (GM's "View Vehicle Summary" report).) The Warranty's coverages began when Gold Star Buick GMC delivered the Sierra to its original owner(s) on July 19, 2019. (UMF ¶ 8; Jensen Decl. Ex. C at pp. 2 & 4; *id.*, Ex. D at "Applicable Warranties".)

Importantly, GM did ***not*** issue or provide any new or additional warranty coverage to Plaintiff or the vehicle when Plaintiff bought the Sierra used on August 25, 2023; Plaintiff received only the balance of coverage under the Warranty that GM issued back in July 2019. (UMF ¶ 8; Jensen Decl. Ex. D (listing November 19, 2021, as the "Start Date" for all applicable warranties for the Sierra)).

C. Plaintiff's Claims

On May 8, 2024, Plaintiff sued GM asserting three causes of action under Song-Beverly: (1) Breach of Express Warranty under Song-Beverly ("Count I"); (2) Breach of Implied Warranty under Song-Beverly ("Count II"); and (3) Violation of Civil Code section 1793.2(b) ("Count III"). (*See generally* Complaint.) Plaintiff has demanded a repurchase, plus a civil penalty, plus attorneys' fees and costs, but Plaintiff is not entitled to the relief requested because he cannot

pursue Song-Beverly claims against GM in connection with Plaintiff's purchase of a used vehicle for which GM did not provide new or additional warranty coverage.

III. APPLICABLE LEGAL STANDARD

Motions for summary judgment and summary adjudication "shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law." (Code of Civ. Proc., § 437c(c) (emphasis added).) Such motions eliminate needless trials. (*Aguilar v. Atlantic Richfield Corp.* (2001) 25 Cal.4th 826, 843; *In re Kelly's Estate* (1960) 178 Cal.App.2d 24, 28.) Summary judgment is appropriate where, as here, Plaintiff lacks evidence on elements of each cause of action. (Code of Civ. Proc., § 437c(f)(1).)

To prevail, GM must show that Plaintiff cannot establish (or reasonably expect to establish) one or more elements of Counts I-III. (*State v. Allstate Ins. Co.* (2009) 45 Cal.4th 1008, 1017.) GM must negate only theories of liability alleged in the Complaint; it need not refute liability on a theoretical possibility not in the Complaint. (*Nativi v. Deutsche Bank Nat. Trust Co.* (2014) 223 Cal.App.4th 261, 290.) GM may satisfy its burden by presenting evidence that negates an element of Plaintiff's three causes of action or by presenting evidence that Plaintiff does not have and cannot reasonably obtain that evidence. (*Hypertouch, Inc. v. ValueClick, Inc.* (2011) 192 Cal.App.4th 805; *Gaggero v. Yura* (2003) 108 Cal.App.4th 884, 889-890.)

Once GM has satisfied its burden, Plaintiff must present evidence to establish a genuine issue of material fact to withstand summary judgment or summary adjudication for GM. (Code of Civ. Proc 437c(p)(2); *Aguilar*, 25 Cal.4th at 849.) Plaintiff does not have that evidence.

IV. ARGUMENT

A. COUNTS I AND III FAIL BECAUSE PLAINTIFF CANNOT PURSUE BREACH OF EXPRESS WARRANTY CLAIMS UNDER SONG-BEVERLY ABOUT THIS SIERRA, WHICH PLAINTIFF DID NOT BUY AS A "NEW MOTOR VEHICLE" AND FOR WHICH PLAINTIFF DID NOT RECEIVE ANY NEW OR ADDITIONAL WARRANTY COVERAGE FROM GM IN CONNECTION WITH THIS USED VEHICLE PURCHASE.

Plaintiff's breach of express warranty claims (Counts I and III) fail as a matter of law. In October 2024, the California Supreme Court affirmed the Court of Appeal's decision in *Rodriguez*

v. FCA US, LLC, holding that a used vehicle purchaser ***cannot pursue*** breach of express warranty claims under Song-Beverly against the manufacturer because Song-Beverly's express warranty provisions apply only to "new motor vehicles," not a used vehicle acquired with some balance of its original warranty. That case – *Rodriguez v. FCA US LLC* (2024) 17 Cal. 5th 189 – is controlling.

The essential facts in *Rodriguez* parallel those here. In that case, the plaintiffs bought a 2022 Dodge Ram 2500 from Pacific Auto Center, a used car dealer located in Fontana, CA, and at the time of sale, the vehicle was two years old, with more than 55,000 miles. (*See Rodriguez*, 17 Cal. 5th at 196.) At the time of sale, the three-year bumper-to-bumper warranty on the truck had expired, but the five-year powertrain warranty was still in effect. (*Id.*) At summary judgment, the plaintiffs claimed they were entitled to restitution under Song-Beverly, alleging that the refund-or-replace remedy applied to "used vehicles" and not just "new motor vehicles." (*Id.*) The trial court granted FCA's motion for summary judgment, and the Court of Appeal affirmed, holding that the phrase "other motor vehicle sold with a manufacturer's new car warranty" in the Song-Beverly statute does not cover the sale of "previously owned vehicles with some balance remaining on the manufacturer's express warranty." (*Id.* (*quoting Rodriguez v. FCA US, LLC* (2022) 77 Cal.App.5th 209, 215).)

In affirming the Court of Appeal's decision, the California Supreme Court analyzed Song–Beverly's statutory framework in detail, expressly holding that Song-Beverly provides no relief for breach of express warranty claims brought by plaintiffs who purchased used vehicles from a retail seller, even where there is some balance remaining on the manufacturer's warranty. (*Rodriguez*, 17 Cal. 5th at 201.) In so holding, the Court determined that Song–Beverly provides relief specifically to purchasers of cars sold with a full warranty, but not to previously sold cars accompanied by some balance of the original warranty. (*Id.*) The Court noted that this conclusion follows directly from the text of Song–Beverly itself and that "the phrase 'other motor vehicle sold with a manufacturer's new car warranty' was not intended to cover any used car with an unexpired new car warranty." (*Id.*)

Like in *Rodriguez*, Plaintiff here did not receive any new or additional warranty coverage from GM; when Plaintiff bought the Sierra used from Price Ford of Turlock, Plaintiff received only

the unexpired balance of coverage remaining under the Warranty that GM issued when the vehicle was delivered new to the original owner(s), 49 months and more than 56,665 miles earlier. (*See* UMF, ¶¶ 1-8; Jensen Decl., ¶¶ 5-8; Doc. Evid. Exs. A-D.) GM was not a party to Plaintiff's purchase. (UMF ¶ 3; Major Decl. Ex. A.)

Consequently, Plaintiff is not entitled to remedies for breach of express warranty under the Song-Beverly Act, and this Court should grant summary judgment, or in the alternative, summary adjudication, in GM's favor on Plaintiff's first and third causes of action.

B. COUNT II FAILS BECAUSE PLAINTIFF CANNOT PURSUE BREACH OF IMPLIED WARRANTY CLAIMS AGAINST GM UNDER SONG-BEVERLY FOR A VEHICLE PLAINTIFF BOUGHT "USED."

Plaintiff's second cause of action (for breach of implied warranty) also fails as a matter of law. Under Song-Beverly, "every sale of consumer goods that are sold at retail in the state shall be accompanied by the manufacture's and the retail seller's implied warranty that the goods are merchantable." (Cal. Civ. Code, § 1792.) "'Implied warranty of merchantability' . . . means that the consumer goods meet each of the following: (1) [p]ass without objection in the trade under the contract description[;] (2) [a]re fit for the ordinary purpose for which such goods are used[;] (3) [a]re adequately contained, packaged, and labeled[;] and (4) [c]onform to the promises or affirmations of fact made on the container or label." (Cal. Civ. Code, § 1791.1(a).) "Consumer goods" are defined as "any ***new*** product or part thereof that is used, bought, or leased for use primarily for personal, family, or household purposes . . . ." (Cal. Civ. Code, § 1791(a) (emphasis added).) ***The implied warranties under Song-Beverly***, however, ***do not apply to manufacturers with respect to the sale of used goods.*** (*See* Cal. Civ. Code, § 1795.5; *Nunez v. FCA US LLC* (2021) 61 Cal.App.5th 385, 399 (analyzing Cal. Civ. Code, § 1795.5 and concluding: "It is evident from these provisions that only distributors or sellers of used goods—***not manufacturers of new goods***—have implied warranty obligations in the sale of used goods") (emphasis added).) Simply put, "only distributors and retail sellers, ***not manufacturers***, are liable for breach of implied warranties in the sale of a used car." (*Nunez*, 61 Cal.App.5th at 399 (emphasis added).)

Here, because Plaintiff bought the Sierra used, and has "no evidence that [GM] was a

distributor or retail seller of [the used Sierra] or in any way acted as such," the breach-of-implied-warranty claim fails as a matter of law. (*Nunez v. FCA US LLC*, *supra*, 61 Cal.App.5th at p. 399, internal citations omitted; UMF, ¶¶ 1-8; Jensen Decl., ¶¶ 4-8; Doc. Evid. Exs. A-D.) Accordingly, this Court should grant GM summary judgment, or in the alternative, summary adjudication, on Count II.

C. AT A MINIMUM, THIS COURT SHOULD GRANT SUMMARY ADJUDICATION ON THE SONG-BEVERLY CLAIMS.

Alternatively, if summary judgment is not granted for the reasons stated above, then this Court should find that Plaintiff's Song-Beverly claims (*i.e.* Counts I, II, and III) are summarily adjudicated under *Rodriguez v. FCA US LLC* (2024) 17 Cal. 5th 189 and *Nunez v. FCA US LLC* (2021) 61 Cal.App.5th 385.

Like in *Rodriguez*, Plaintiff here did not receive any new or additional warranty coverage from GM; when Plaintiff bought the Sierra used from Victorville Chevrolet Cadillac, Plaintiff received only the unexpired balance of coverage remaining under the Warranty that GM issued when the vehicle was delivered new to the original owner – over 56,000 miles earlier. (*Rodriguez,* 17 Cal. 5th at 201.) Concurrently, under *Nunez,* "only distributors and retail sellers, not manufacturers, are liable for breach of implied warranties in the sale of a used car." (*Nunez*, 61 Cal. App. 5th at 399 (emphasis added)). Pursuant to *Rodriguez* and *Nunez*, which are the laws of the land, the Song-Beverly claims must be summarily adjudicated, as the breach of express warranty and breach of implied warranty claims have no merit.

V. CONCLUSION AND RELIEF REQUESTED

For all these reasons, GM respectfully requests that this Court grant GM summary judgment on Counts I-III of the Complaint and dismiss this case with prejudice. Alternatively, GM respectfully requests that this Court grant summary adjudication on all of Plaintiff's Song-Beverly claims (Counts I-III).

Dated: May 2, 2025

ERSKINE LAW, APC

CAMERON MAJOR, ESQ.
AUSTIN ABERNATHY, ESQ.
Attorneys for Defendant
GENERAL MOTORS LLC

PROOF OF SERVICE

I am employed in the County of Orange and my business address is 1592 N. Batavia St., Suite 1A, Orange, CA 92867. I am over the age of 18 years and I am not a party to this action. I am readily familiar with the practices of ERSKINE LAW, APC for the collection and processing of correspondence for mailing with the United States Postal Service. Such correspondence is deposited with the United States Postal Service the same day in the ordinary course of business.

On April 23, 2025, I served the foregoing document(s), bearing the title(s): **GENERAL MOTORS LLC'S NOTICE OF MOTION AND MOTION FOR SUMMARY JUDGMENT OR, ALTERNATIVELY, FOR SUMMARY ADJUDICATION; MEMORANDUM OF POINTS AND AUTHORITIES** on the interested parties in the action as follows:

[X] by placing [] the **original** [X] a **true copy** thereof enclosed in a sealed envelope addressed as follows:

QUILL & ARROW, LLP
Kevin Y. Jacobson, Esq.
kjacobson@quillarrowlaw.com
Siyun Yang, Esq.
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[] (**BY MAIL SERVICE**) I placed such envelopes for collection and to be mailed on this date following ordinary business practices.

[] **(BY PERSONAL SERVICE**) I caused to be delivered such envelope by hand to the office of the addressee.

[] (**BY FACSIMILE**) The document stated herein was transmitted by facsimile transmission and the transmission was reported as complete and without error. A transmission report was properly issued by the transmitting facsimile machine and a copy of said transmission report is attached to the original proof of service indicating the time of transmission.

[] (**BY NEXT DAY DELIVERY**) I caused to be delivered such envelope by hand to the office of the addressee.

[X] (**BY E-MAIL)** I served the above-mentioned document via electronic transmission per agreement of the parties.

[X] (**State**) I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

[] (**Federal**) I declare under penalty of perjury that I am employed by a member of the Bar of this Court; at whose direction this service is made.

Executed on April 23, 2025, at Orange, CA.

Signed: Jerry Obando
Jerry Obando, Paralegal